

	Escrow, and related topics alleged in this Cross-Complaint as set forth in Paragraph 32, above [sic]. A judicial declaration is necessary and appropriate at this time under the circumstances. This allegation is less than clear as to what judicial determination cross-complainants seek with respect to the moving cross-defendant. The demurrer to the first cause of action for declaratory relief is sustained with leave to amend. <u>Third cause of action for breach of fiduciary duty.</u> Although moving cross-defendant apparently does not deny that, as an escrow holder, it owed a fiduciary duty to the parties to the escrow, including responding cross-complainants, it contends that the third cause of action fails because it does not allege the terms of the escrow agreement that prescribe those fiduciary duties. Here, the cross-complaint alleges that cross-defendant breached its fiduciary duty to be neutral with respect to parties to the escrow in that it had one-sided communications with the other cross-defendants and colluded with them. The cause of action is sufficiently set forth, and the demurrer is overruled. <u>Motion to Stike</u> The motion of cross-defendant Briggs & Alexander, APLC, to strike portions of the cross-complaint of cross-complainants The Dodell Law Corporation and Herbert L. Dodell is DENIED for failure to comply with CRC 3.1234. The 7/13/26 CMC is continued to 10/12/26 at 8:45am in Dept. C24. Cross-defendant shall give notice.
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210	<i>Rodriguez vs. Sagar Hotels, Inc.</i>	<u>Demurrer</u> The general demurrer of defendant Sagar Hotel, Inc., to the third and fifth cause of action in the complaint of plaintiffs Debbie Rodriguez, individually and as GAL for minor plaintiffs Melanie Pinto and Aiden Pinto, and Carlos Pintos is SUSTAINED with 20 days' leave to amend. <u>The third cause of action for intentional infliction of emotional distress</u> The allegations in the third cause of action are conclusory and not supported by facts. (<i>Hughes v. Pair</i> (2009) 46 Cal.4th 1035, 1050.) Plaintiffs allege, without supporting facts, that defendant engaged in a “knowing, intentional, and willful” failure to eliminate all bed bug and vermin infestations and remediate the contamination and that this conduct “was so extreme and outrageous as to go beyond all bounds of decency.” (See complaint, ¶ 76.) Plaintiffs also allege that defendant knew that its conduct would result in plaintiffs’ severe past and presently ongoing mental and emotional distress and that it acted with reckless disregard for that emotional distress. (See complaint, ¶ 79.) The demurrer to this cause of action is sustained with leave to amend. <u>The fifth cause of action for fraudulent concealment</u> The allegations in the fifth cause of action are merely conclusions with the exception of an allegation in paragraph 102 that an employee or agent named Mike was aware of the existence of bed bugs on the premise and in the hotel room. The allegations in paragraph 110 are particularly lacking because, in an attempt to hold the entity liable for punitive damages, plaintiffs merely plead
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		three different conclusions in the alternative. (<i>See Los Angeles Memorial Coliseum Commission v. Insomniac, Inc.</i> (2015) 233 Cal.App.4th 803, 831.) The demurrer to this cause of action is sustained with leave to amend. <u>Motion to Strike</u> The motion of defendant Sagar Hotels, Inc., to strike portions of the complaint of plaintiffs Debbie Rodriguez, individually and as GAL for minor plaintiffs Melanie Pinto and Aiden Pinto, and Carlos Pintos is MOOT in part and GRANTED in part. The motion is MOOT as to items 1 through 6 in the notice of motion, which seek to strike paragraphs 87 and 88, which are in the third cause of action for intentional infliction of emotional distress and paragraphs 102, 105, 106, 110, which are in the fifth cause of action for fraud based on concealment. The motion is GRANTED as to items 7 and 8 in the notice of motion, which seek to strike paragraph 115 and the request for punitive damages in the prayer. (Essentially, items 7 and 8 are the same thing because paragraph 115 <i>is</i> the request for exemplary and punitive damages in the prayer.) Because the Court is sustaining the demurrer to the third and fifth causes of action, the remaining causes of action in the complaint, which are for negligence, nuisance, and breach of contract, do not support claims for punitive damages. The court continues the 7/13/26 CMC to 10/12/26 at 8:45am in Dept. C24. Defendant shall give notice.
211	<i>Compass Recovery, Inc. vs. Blue Cross &</i>	The hearing on the Blue Cross Blue Shield of Wyoming's Motion to Quash service of summons is